

24STLC01293 24STLC01293

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-03

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Case Number: 24STLC01293 Hearing Date: August 3, 2026 Dept: 26

TENTATIVE RULING:

Defendant Marella Louise

Longwell's Motion to Vacate Default and Default Judgment is granted.

Trial setting conference is

scheduled for 08/17/2026 at 9:30 am in Department 26 at the Spring Street Courthouse.

Analysis:

Plaintiff Ismael Samano ("Plaintiff") filed this action against Defendant Marella Louise Longwell ("Defendant") on February 22, 2024. Trial was set for August 21, 2025. On July 31, 2024, the Court granted Plaintiff's application for service by publication and Plaintiff filed proof of publication on September 5, 2024. Following Defendant's failure to file a responsive pleading, the Court entered Defendant's default on October 14, 2024.

Plaintiff's request for default judgment was rejected on July 31, 2025 and the matter came for trial on August 21, 2025. When Plaintiff's counsel failed to appear at trial, the case was dismissed without prejudice pursuant to Code of Civil Procedure section 581, subdivision (b)(3). (Minute Order, 08/21/25.) On December 11, 2025, the Court granted Plaintiff's Motion to Vacate Dismissal. (Minute Order, 12/11/25.) The Court entered default judgment against Defendant on April 14, 2026.

Defendant filed the instant Motion to Vacate Default and Default Judgment on July 9, 2026. Plaintiff filed an opposition on July 21,

2026, and Defendant replied on July 24, 2026.

Discussion

The Motion is brought pursuant to Code of Civil Procedure, section 473, subdivision (b), or alternatively on equitable grounds. Under Code of Civil Procedure, section 473, subdivision (b),

an application for relief must be made no more than six months after entry of the order from which relief is sought and must be accompanied by an affidavit of fault attesting to the moving party's or counsel's mistake, inadvertence, surprise or neglect. (Code Civ. Proc., § 473, subd. (b); *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143.) The six-month deadline is jurisdictional and not subject to tolling. (*Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 42.) The instant Motion, however, was filed almost two years after entry of default and, therefore, cannot be granted under the moving statute.

To qualify for equitable relief based on extrinsic mistake, which exists when circumstances extrinsic to the litigation have unfairly cost a party a hearing on the merits, the defendant must demonstrate: (1) "a meritorious case"; (2) "a satisfactory excuse for not presenting a defense to the original action"; and (3) "diligence in seeking to set aside the default once the fraud [or mistake] had been discovered." (*Mechling v. Asbestos Defendants* (2018) 29 Cal.App.5th 1241, 1245-1246 (citing *In re Marriage of Stevenot* (1984) 154 Cal.App.3d 1051, 1071).)

The Motion is supported by the declaration of defense counsel, who is employed as outside counsel for Defendant's insurance company, Allstate Insurance Company. (Motion, Vogel Decl., ¶1.) Allstate delayed in referring the case to defense counsel until May 28, 2026, resulting in Defendant's inadvertent non-response. (Motion, Vogel Decl., ¶¶2, 7; Clerkin Decl., ¶5.) The Motion is also accompanied by a copy of Defendant's proposed Answer to the Complaint, supporting the meritorious defense element. (Motion, Vogel Decl., Exh. D.) Finally, the Motion demonstrates diligence in seeking to set aside the default. As soon as defense counsel was referred the case on or about May 28, 2026, they communicated with Plaintiff's counsel and were informed that Plaintiff's counsel would not stipulate to vacate the default and default judgment. (*Id.* at ¶6.) Six weeks later, Defendant filed the instant Motion for relief.

Plaintiff argues that Defendant's reliance on *Rappleyea v. Campbell* (1994) 8 Cal. 4th 975 is misplaced and misleading because the facts are not analogous. In *Rappleyea*, the Court of Appeals determined that two extrinsic circumstances cost the defendants their hearing on the merits. First, they were misinformed by the clerk's office regarding the fee to file an answer, resulting in their timely answer being rejected. (*Rappleyea v. Campbell* (1994) 8 Cal. 4th 975, 978.) Second, the plaintiff's attorney misinformed the self-represented defendants that they could not argue that the default entered was taken against them through inadvertence, mistake, or excusable neglect, despite this being allowed under Code of Civil Procedure section 473, subdivision (b). (*Id.* at 979.) Although the facts of *Rappleyea* are not analogous to those in this action, they demonstrate how the three elements for equitable relief can be met. Defendant's citation to *Rappleyea*, therefore, is neither misplaced, nor misleading. Other than this complaint about the facts of *Rappleyea*, Plaintiff's opposition does not address which of the three elements for equitable relief are not satisfied here.

Therefore, the Court exercises its power in equity to vacate the entry of default and default judgment.

Conclusion

Defendant Marella Louise
Longwell's Motion to Vacate Default and Default Judgment is granted.

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Moving party to give notice.